

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Civil Revision No. 3753 of 2015

In the matter of:

An application under section 115(1) of the Code of Civil Procedure, 1908.

And

In the matter of:

Abdul Malek and others.

...Petitioners.

-Vs-

Present

Mr. Justice Mamnoon Rahman

And

Mr. Justice Md. Atoar Rahman

Md. Giasuddin and others.

...Opposite parties.

Mr. Md. Oziullah, Adv. With

Mr. F.H. Bhuiyan, Adv.

...For the petitioners.

Mr. Ahmed Nawshad Zamil, Adv. With

Ms. Munmun Nahar, Adv

...For the opposite party Nos. 2, 5-8.

Heard on: 04.12.2022

And

Judgment on: The 23rd February, 2023

Mamnoon Rahman,J:

In an application under section 115(1) of the Code of Civil Procedure, 1908 this rule was issued calling upon the opposite party Nos. 1-13 to show cause as to why the impugned judgment and decree dated 31.08.2015 (decree signed on 07.09.2015), passed by the learned Additional District Judge, 7th Court, Dhaka in Title Appeal No. 292 of 2011 allowing the appeal on contest and thereby reversing the judgment and decree dated 04.07.2011 (decree signed on 06.07.2011) passed by the Joint District Judge, 5th Court, Dhaka in Title Suit No. 18 of 2006 dismissing the suit on contest against the defendant should not be set

aside and/or passed such other or further order or orders as to this court may seem fit and proper.

The opposite parties as plaintiffs instituted Title Suit No. 18 of 2006 in the Court of Joint District Judge, 5th Court, Dhaka impleading the petitioners as defendants for partition. After filing of the suit the present petitioner-defendants filed written statement denying all the material allegations made in the plaint. The trial court proceeded with the suit and framed issues. The parties adduced evidence both oral and documentary. The trial court after hearing the parties and considering the facts and circumstances dismissed the suit. Being aggrieved the present opposite party-plaintiffs preferred Title Appeal being No. 292 of 2011 before the learned District Judge, Dhaka and the same was heard and disposed of by the learned Additional District Judge, 7th Court, Dhaka who vide the impugned judgment and decree allowed the appeal and decreed the suit after setting aside the judgment and decree of dismissal passed by the trial court. Being aggrieved, the present petitioners moved before this court and obtained the present rule.

We have heard the learned Advocates for the petitioners as well as opposite parties. We have perused the impugned judgment and decree and also those passed by the trial court, revisional application, grounds taken thereon, necessary papers and documents as well as the Lower Court's record.

However, on preliminary stage the learned Advocate for the petitioner submits that the impugned judgment and decree passed by the

lower appellate court itself suffers from gross illegality because of the want of jurisdiction. He submits that as per the provisions of section 21 of the Civil Court's Act XII of 1887 the learned District Judge has the power to hear and dispose of the appeal regarding value of the original suit not exceeding Tk. 5,00,000/-, but in the instant case the valuation is Tk. 15,00,000/- though the suit is a partition suit and the respective parties are claiming their own portions.

We have perused the necessary papers and documents on the basis of the submissions and it appears that the suit value is at Tk. 15,00,000/- and the appeal was disposed of by the learned Additional District Judge, 7th Court, Dhaka. Admittedly, the suit is for partition and the respective parties are claiming their own portions of different valuation, but the aggregate amount of the suit value is Tk. 15,00,000/-. The court of law is to adjudicate such suit on the basis of aggregate valuation. It has already been seen that the suit was heard and disposed of by the Joint District Judge, Dhaka.

For better appreciation of the matter section 21 of the Civil Court's Act of 1887 is quoted below;

Save as aforesaid, an appeal from a decree or order of a Joint District Judge shall lie—

- (a) To the District Judge where the value of the original suit in which or in any proceeding arising out of which the decree or order was made did not exceed five lac Taka and*
- (b) To the High Court Division in any other case.*

So, it transpires that the learned District Judge was not empowered to admit the appeal want of pecuniary jurisdiction and the learned Additional District Judge has no authority or power to hear and dispose of any appeal arising out of a original suit where the value exceeds Tk. 5,00,000/-. But in the present case in hand the learned District Judge committed an error of law by admitting the appeal and the learned Additional District Judge also committed same nature of illegality by disposing of the appeal which is not within their pecuniary jurisdiction.

In such circumstances, we are of the view that the judgment and decree passed by the lower appellate court is liable to be set aside on question of pecuniary jurisdiction only, not on merit.

Accordingly, the instant rule is made absolute and the impugned judgment and decree passed by the court below is hereby set aside. However, the petitioner-plaintiffs are at liberty to invoke the appropriate jurisdiction, if so advised. In such circumstances, the opposite parties shall get the benefit relates to limitation.

Send down the L. C. Records to the concerned court below with a copy of the judgment at once.

(Mamnoon Rahman,J:)

I agree.

(Md. Atoar Rahman,J:)